

5. The Court shall issue the order after hearing.
6. Plaintiff to submit a form of money judgment against Defendant.

3. 9:00 AM CASE NUMBER: L24-06199

CASE NAME: BANK OF AMERICA, N.A. VS. ALBERTO VAZQUEZ

***HEARING ON MOTION IN RE: FOR ORDER SETTING ASIDE AND VACATING ITS PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT**

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion for Order Setting Aside and Vacating its Prior Order of Dismissal and for Entry of Judgment Pursuant to Stipulation on October 8, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 16, 2025.

Background

The parties entered into that certain settlement agreement on or about April 21, 2023 (the "Settlement Agreement"), the terms of which included payment by the defendant Alberto Patino Vazquez ("Defendant") in the amount of \$12,410.34, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Michael Mallonga filed October 8, 2025 ("Supporting Declaration"), ¶¶3-5 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment for the foregoing amount plus court costs, less credit for any payments made, in the event of a default. *Id.*, **Exhibit 1**, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶6. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶7.

After credit for amounts paid, there remains \$7,710.34 due and owing, plus costs of \$916.50, for a total of \$8,626.84. See Supporting Declaration, ¶¶6-7 and **Exhibit 2** thereto.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the assigned hearing information at the time of service or if separate notice of the assigned hearing date was otherwise subsequently given.***
2. Subject to Paragraph 1 above, the Court finds that Defendant is in default of the

Settlement Agreement.

3. Subject to Paragraph 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$7,710.34, plus costs of \$916.50, for a total judgment of \$8,626.84.
4. Subject to Paragraph 1 above, Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

4. 9:00 AM CASE NUMBER: L24-09985

CASE NAME: WELLS FARGO BANK, N.A. VS. JENNIFER RODA

*HEARING ON MOTION FOR DISCOVERY MTN TO DEEM REQ FOR ADMISSIONS ADMITTED FILED BY PLN ON 9/25/25

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion to Deem Requests for Admissions Admitted on September 25, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on December 16, 2025. The motion is unopposed.

Background

Plaintiff served Defendant Jennifer Guptill Roda ("Defendant") with a Requests for Admission (Set One). See Declaration of Pearse F. Early filed September 25, 2025 ("Supporting Declaration"), ¶1 and **Exhibit A** thereto (the "RFAs"). The RFAs were served on June 3, 2025 by mail. *Id.* at ¶1 and **Exhibit A** [attached Declaration of Service dated June 3, 2025 (the "Proof of Service")].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before July 8, 2025 (30 days from and after June 3, 2025 was July 3, 2025 and five calendar days thereafter fell on July 8, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶2.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148